

Hollowell Patent Group PLLC

www.hollowellpatent.com

March 30, 2024

Cynthia Hunter
Chief Operating Officer
Jackson Inc

Re: Trademark Clearance for Jackson Inc

Dear Ms. Hunter:

This letter sets out the terms on which our firm will act for Jackson Inc in clearing the trademarks it proposes to adopt, and it becomes our agreement once you countersign it and return a copy to me. I have written the terms out at some length and in plain words, because a clearance engagement runs more smoothly when both sides have read the same description of the work before it starts, and because the value of a clearance search lies as much in the limits we draw around it as in the searching itself. Please read what follows against your own understanding of what you have asked us to do, and telephone me before you sign if any part of it does not match what you expect of us.

The Work We Will Do

The engagement is a trademark clearance directed at the marks that Jackson Inc has identified to us for use with its goods and services, and its purpose is to assess the risk that adopting and using each proposed mark would conflict with rights already held by others. We will search the federal register, the records of the state registries, and the common-law sources available to us for marks that are the same as or confusingly similar to each candidate, read what those searches return against the goods and services you intend to offer, and give you our assessment of the risk each candidate carries together with the options that assessment leaves open to you. Where a conflict is close enough that reasonable people could weigh it differently, we will say so plainly rather than resolve the question more firmly than the record will bear.

It is worth stating with equal care what this engagement is not. Our clearance is an assessment of the marks and classes you identify and the records our searches reach as of the date we report, and it is neither a guarantee that no conflicting right exists beyond what those searches surface, nor an opinion on the validity of any

registration we happen to find, nor a filed application, unless we later agree in writing to take that further step. If you add candidate marks, widen the goods and services, or ask us to extend the search beyond the United States, we will scope and price that additional work before we begin it, so that nothing is added to this engagement without your agreement to it.

Conflicts of Interest

Before opening this matter we ran our conflicts check, and it turned up nothing that prevents us from acting for Jackson Inc on this clearance. If a conflict later comes to light, we will tell you at once and will not carry the matter forward until we have addressed it with you, because clearing that question at the outset costs far less than untangling it in the middle of the work.

Who Will Do the Work

Ashley Williams, a patent agent in our prosecution group, will run the searches and build the analysis that supports our assessment, and she will be your team's day-to-day contact on the substance of the work. Kelly Snyder, an associate in the same group, will maintain the search record, keep the matter anchored to our docket, and prepare the written clearance report that carries our conclusions to you. Anything that turns on a judgment about the risk a given conflict presents is reviewed by me before it reaches you, so that the assessment you rely on carries the firm's name and not one person's alone, and the people whose names are on the work are the people who have done it.

Fee and Start Date

Our fee to Jackson Inc for the clearance described above is \$48,000, fixed for that scope rather than billed against hourly time, so that you can put a candidate mark to us without watching a clock. We will begin the work on April 9, 2024, and we plan on roughly four months from that date to the written clearance report, though we will tell you early if the work turns out to need more time or less. If you ask us to widen the scope, we will quote the addition in writing and will not start it until you have agreed the price.

Invoicing and Payment

We will bill the fixed fee in installments as the work proceeds, and each invoice is due within thirty days of its date. Out-of-pocket costs, chiefly the fees charged by the search services we use, are billed at cost and itemized on the invoice, and we do not mark them up. If an invoice goes unpaid past its due date, we may suspend work on

the matter after written notice to you, because a clearance left half-finished serves no one, and we would rather pause it cleanly than carry it on unpaid.

Term and Termination

The engagement runs from the start date set out above until we deliver the written clearance report, unless either of us ends it sooner. Either party may end it on written notice, for any reason or none. If you end it, you owe the fee for the work performed to that date, prorated against the fixed fee, together with any costs we have incurred, and we will hand over the search record and our work in whatever state it has then reached.

Confidentiality

We will treat the marks you are weighing, the goods and services behind them, and the fact and terms of this engagement as confidential, and we will use what you tell us only to perform the work you have retained us for. A clearance touches brand decisions you have not yet made public, and we will handle it with that in mind. Our analysis and the correspondence around it are intended to be protected by the attorney-client privilege, and we ask that you keep them within the group at Jackson Inc that needs them, since a privileged assessment shared too widely can lose the protection that lets us write to you candidly.

Limitation of Liability

We will perform this engagement with the care and skill our profession expects, and our assessment will reflect our best professional judgment on the records before us. We cannot warrant a particular outcome, because a clearance turns on the rights of others and on how a court or the trademark office might one day weigh them, and those are matters no counsel controls. Our total liability arising out of this engagement, on any theory, is limited to the fee you actually pay us for it, except where the law does not permit that limit, and neither of us will be liable to the other for indirect or consequential loss, including lost profits.

Governing Law

This letter is the entire agreement between us on this engagement and supersedes anything discussed or drafted before it, and it may be changed only in a writing that we both sign. It is governed by the law of the state in which our firm keeps its principal office, without regard to its conflict-of-laws rules, and any dispute we cannot settle between ourselves will be heard by the courts sitting in that state, whose jurisdiction we each accept.

If these terms match your understanding, please sign and date the enclosed copy of this letter and return it to me, and we will open the matter and begin on the date set out above. If you would rather talk any part of it through first, tell me and I will make the time this week.

Very truly yours,

Mary Bradley

Managing Partner

Date: March 30, 2024

Cynthia Hunter

Chief Operating Officer, Jackson Inc

Date: March 30, 2024